

**HIGHLAND ORGANICS, LLC v TRUSTY TRANSPORTATION
AND DISTRIBUTION, LLC, et al**

25CV48401

PLAINTIFF'S MOTION FOR SERVICE BY ELECTRONIC MAIL

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Accordingly, the motion is **DENIED, without prejudice to refile.**

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

**SAN ANDREAS SANITARY DISTRICT, et al v
LOCKWOOD, et al**

25CV48360

PLAINTIFF'S REQUEST FOR PRELIMINARY INJUNCTION

This is an action for breach of contract, nuisance, and declaratory judgment related to two permanent public utility easements and one access easement over three separate parcels of real property for the benefit of the San Andreas Sanitary District ("District.") Defendants are Lisa Lockwood ("Lockwood"), Donald Neu ("Neu"), and Neuwood Ranch Goats, LLC. ("LLC") (collectively "Defendants.") Lockwood and Neu are the record owners of the Properties; Lockwood and Neu as members of the LLC which operates a goat grazing business.

Now before the Court is an order to show cause why a preliminary injunction should not issue against Defendants.

I. Background Facts

Lockwood and Neu own the real property commonly known as 1516 Highway 12, San Andreas, California 95249, identified by Assessor's Parcel Numbers: 040-008-060-000 ("Property 1"); 040-013-009-000 ("Property 2" ; and 040-012-026- 000 ("Property 3" (collectively, the "Properties.") (Complaint ¶ 6.) The District holds three recorded easements (two permanent public utility easements and one access easement) granting it access to operate, maintain, inspect, and repair its wastewater treatment monitoring system over three separate and commonly owned parcels. (*Id.* ¶ 1.) The LLC operates a goat grazing business on the Properties. (*Id.* ¶ 7.)

In February of 2004, Isabel M. Nielsen, individually and as Trustee of the Isabel M. Nielsen Revocable Trust ("Nielsen"), conveyed to District a permanent easement for the purposes of placing, maintaining, and operating a flow meter on the Calaveras River, together with a monitoring station and an access easement for ingress and egress. (Complaint ¶ 11.) Subsequently, Nielsen accepted District's offer to purchase a temporary construction easement and an additional permanent utility easement for the installation and maintenance of an underground sewer main with surface manholes. (*Id.* ¶ 12.) In November of 2017, Nielsen conveyed the Properties by grant deed to Lockwood and Neu. (*Id.* ¶ 13.)